

Employers' Liability (or relationships akin to employment)



Non-Delegable Duties and
Vicarious Liability

Part 2/4

Week 17

Vicarious Liability – What is



- Liability for acts/omissions or torts of third parties
- Relationship between tortfeasor and defendant
- No fault of the person (e.g. employer) held liable to the claimant
- Tortfeasor jointly liable
- Theory – the right/wrong:
 - Master's tort theory – master stands in place of servant
 - Servant's tort theory – master is liable for the torts of servants

Vicarious Liability – How do we decide who is liable?

We look to the relationship between:

- Tortfeasor and Defendant (e.g. employee at fault for the tort and employer)
- In the course of employment:

*‘Vicarious liability is a common law principle of **strict**, no-fault liability. Under this principle a blameless employer is liable for a wrong committed by his employee while the latter is about his employer's business. The time-honoured phrase is “while acting in the course of his employment”. It is thus a form of secondary liability. The primary liability is that of the employee who committed the wrong.’*

Majrowski v Guy's and St Thomas' NHS Trust [2007] 1 AC 224, 228 per Lord Nicholls

vicarious liability:
'within the course of a contract of
employment'
to
'close connection'



The “Salmond” Test – **J Salmond, *Law of Torts* (1st edn, 1907):**

An employee’s tort will have been committed in the course of his employment if it was either:

- a) A wrongful act authorised by [the employee’s employer], or
- b) A wrongful and unauthorised mode of doing some act authorised by [the employee’s employer].



The “close connection” test - ***Lister v Hesley Hall Ltd* [2001] UKHL 22, [28] per Lord Steyn:**

‘The question is whether the warden’s torts were so closely connected with his employment that it would be fair and just to hold the employers vicariously liable. On the facts of the case the answer is yes.’

Vicarious Liability – Stretching the ‘close connection’ test?

Mohamud v WM Morrison Supermarkets Plc [2016] UKSC 11

2 stage test:

1. Close connection – ‘what functions or “field of activities” have been entrusted by the employer to the employee, or, in everyday language, what was the nature of his job’ [44]; and
2. Furtherance of employer’s business – ‘whether there was sufficient connection between the position in which he was employed and his wrongful conduct to make it right for the employer to be held liable under the principle of social justice’. [45]



See also: *Bellman v Northampton Recruitment Ltd* [2018] EWCA Civ 2214

Vicarious Liability – Limiting the ‘close connection’ test

WM Morrison Supermarkets Plc v Various Claimants
[2020] UKSC 12

[47] per Lord Reed

‘In the present case, it is abundantly clear that [the employee] was not engaged in furthering his employer's business when he committed the wrongdoing in question. On the contrary, he was pursuing a personal vendetta, seeking vengeance for the disciplinary proceedings some months earlier. In those circumstances...[the employee's] wrongful conduct was not so closely connected with acts which he was authorised to do that...it can fairly and properly be regarded as done by him while acting in the ordinary course of his employment.’

See: Joel v Morison (1834) 172 ER 1338 – ‘a frolic of his own’



Vicarious Liability: 'akin to employment'

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Various Claimants v The Institute of the Brothers of the Christian Schools [2012] UKSC 56

At [35] per Lord Phillips:

- i. the employer is more likely to have the **means to compensate** the victim than the employee and can be expected to have insured against that liability;
- ii. the tort will have been committed as a result of **activity** being taken **by the employee on behalf of the employer**;
- iii. the employee's activity is likely to be **part of the business activity** of the employer;
- iv. the employer, by employing the employee to carry on the activity will have **created the risk** of the tort committed by the employee; [and]
- v. the employee will, to a greater or lesser degree, have been **under the control of the employer**.

Followed in *Cox v Ministry of Justice* [2016] UKSC 10 and *Armes v Nottinghamshire County Council* [2017] UKSC 60 (see Lecture Notes Part 1)

Vicarious Liability: 'akin to employment'

Various Claimants [2012] UKSC 56, [21] per Lord Phillips:

- i. The first stage is to consider the relationship of D1 and D2 to see whether it is one that is capable of giving rise to vicarious liability.
- ii. What is critical at the second stage is the connection that links the relationship between D1 and D2 and the act or omission of D1.



Partnership/Agency

Cox v Ministry of Justice [2016] UKSC 10, [2] per Lord Reed:

'The scope of vicarious liability depends upon the answers to two questions. First, what sort of relationship has to exist between an individual and a defendant before the defendant can be made vicariously liable in tort for the conduct of that individual? Secondly, in what manner does the conduct of that individual have to be related to that relationship, in order for vicarious liability to be imposed on the defendant?'

More Recent Developments Sexual Assault Cases



Trustees of the Barry Congregation of Jehovah's Witnesses (Appellant) v BXB (Respondent) [2023] UKSC 15

- T was an elder in the D's church and C was a member of the congregation
- C & T (and their families) had been friends for many years
- T made C uncomfortable – but another elder (T's father) said T needed support – for this reason and this reason alone C continued to see T.
- After a day evangelising and at T's house, T raped C

Question for the court: were the Jehovah's Witness organisation vicariously liable for T?

Test for VL confirmed (and applied to such cases):

1. Was the relationship between T and the organisation one capable of giving rise to VL? A contract of employment or akin to employment? **Yes**

(but note: 'The creation of the risk of rape should not have been included within the criteria [by the lower courts] for deciding whether the relationship was akin to employment.' [69] per Lord Burrows

2. Close connection test? **No**

'was...the wrongful conduct, the rape,...so closely connected with acts that the tortfeasor...was authorised to do, that the rape can fairly and properly be regarded as committed by him while acting in the course of his quasiemployment as an elder'? [71] per Lord Burrows

How has *Barry* been applied?

See, for example: *MXX v A Secondary School* [2023] EWCA Civ 996

- Followed *Barry*
- C's claim against D was successful in principle only on appeal to the CA – D was not vicariously liable for the torts of T
- C was a schoolchild
- C came into contact with T during T's work experience placement (WEP)
- C appealed – the trial judge had found there was not a relationship akin to employment between T and D
- CA found that there was a relationship akin to employment between T and D (success in principle).
- C was sexually assaulted by T *after* his WEP had ended – D was not liable for this tort (assault and battery), as there was not a sufficiently close connection between the tort and T's employment
- T had, however, groomed C during his WEP - (further success in principle), however, there was still not a sufficiently close connection between the tort (intentional infliction of injury) and T's employment for the D to be vicariously liable.

MCQ Practice

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LAW.224 NDD and VL Part 1 and 2



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To be continued...

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